

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

TO

**NOTICE OF MOTION AND MOTION
FOR LEAVE
TO FILE THIRD AMENDED
COMPLAINT**

Date: May 26, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Reservation No.: [Reserve via court system;
insert before filing.]

ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that Plaintiff will move this Court on **Tuesday, May 26, 2026**, at **9:00 a.m.**, in **Department 302**, before **Hon. Joseph M. Quinn**, for an order granting leave to file the Third Amended Complaint lodged with this motion. Notice is given pursuant to Code of Civil Procedure § 1005(b) (not fewer than sixteen court days before the hearing, excluding weekends and holidays). **Reservation No.:** [Reserve via court system; insert before filing.]

GROUND FOR MOTION

This Motion is made on the following grounds:

1. LIBERAL AMENDMENT POLICY

California courts have a strong policy favoring resolution of disputes on their merits. Code of Civil Procedure § 473 grants courts broad discretion to allow amendments to pleadings, and that discretion should be exercised liberally in favor of amendments. *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939; *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.

2. THE TAC CURES DEFENSE OBJECTIONS AND CODIFIES NEW ARCHITECTURE ON THE SAME FACTUAL RECORD

The proposed Third Amended Complaint cures the seven objections raised in Defendant's April 22, 2026 Motion to Strike under CCP § 436 and codifies additional architecture on the same factual record:

- **(1) Trope — pro-per fees:** Section III: Deletion; *Prentice* damages element with four line-items.
- **(2) Oppression / malice:** Section IV: *Lazar* particulars; *Mock* willful-blindness as malice; deny-delay-defend pattern.
- **(3) Fraud particularity:** Section IV: Sarah Rash; Claim No. 1004-09-1054; Feb. 25, 2021; four Silent Witnesses with SFPD identifiers.
- **(4) Litigation privilege / Ribas:** Section II: Pre-litigation carveout; non-communicative conduct; *Ribas* distinction; *Flatley* illegality carve-out; *City of Montebello* narrowness pre-rebuttal.
- **(5) Standing / Shaolian:** Section I.5: Direct-addressee theory; Civil Code §§ 2330/2338 agency-ratification spine.
- **(6) Collateral estoppel / § 1032:** Section VI: Distinct primary right; PI disclaimer; *Lucido*

five-factor walk-through; CGC-25-631801 / CGC-25-631802 double-recovery reservation.

- **(7) Investigation standard:** Section VII: Title 10 CCR § 2695.7(b)/(d)/(g) and § 2695.5(b); Ins. Code § 790.03(h)(1)/(3)/(5); doctrinal stack (*Bartel / Egan / Wilson / Frommoethelydo / Mariscal / Maslo / Hamilton / Jordan*).
- **(8) Reckless-disregard scienter floor:** TAC § 0 (§§ 0.1–0.5): Five-authority Tier-1 block (*Engalla / Modnick / Sanders / Bily / Wilson*); CACI 1903 / 1907; alternative pleading under CCP § 431.30(c).
- **(9) Negligent Misrepresentation under Civ. Code § 1710(2):** TAC Fourth Cause of Action: no-reasonable-ground tier on the same factual record; *Bily / Quelimane / Borba* fact-vs-opinion baseline; regulatory floor under § 2695.7(d).
- **(10) Declaratory Relief under CCP § 1060:** TAC Fifth Cause of Action: prospective preclusive declarations across CGC-21-594102, CGC-25-631801, and CGC-25-631802 on representation-of-fact status, reasonable availability, non-retrieval, absence of reasonable ground, and judicial estoppel.

3. NO PREJUDICE TO DEFENDANT

Defendant will not be prejudiced by the proposed amendments:

- The TAC does not add any new parties.
- The TAC does not assert any new factual theory of liability and rides on the **same factual record** as the operative Second Amended Complaint. The codified scienter floor and the codified Negligent Misrepresentation and Declaratory Relief counts are remedial alternatives on that same factual record (CCP § 431.30(c)); no new percipient witnesses, no new documents, and no new fact discovery are required.
- The case is at an early stage.
- No additional discovery should be necessary.

4. GOOD FAITH AMENDMENT

The proposed amendments are made in good faith to address objections raised in Defendant's CCP § 436 Motion to Strike and to codify the doctrinal architecture (reckless-disregard scienter floor under *Engalla*, Negligent Misrepresentation under § 1710(2), Declaratory Relief under § 1060) on the same factual record.

5. MERITORIOUS CLAIMS SUPPORTED BY RECORD

The proposed Third Amended Complaint states meritorious claims supported by the certified record, including:

- The February 25, 2021 denial letter (Claim No. 1004-09-1054, signed by Sarah Rash);
- The **four Silent Witnesses** (911 audio + SFDEM CAD; SFPD body-worn camera footage with on-camera independent-eyewitness corroboration from Justin Rosemond; SFPD CAD log; supplemental SFPD report relating to the February 4, 2021 collision), each tied to SFPD Incident Report No. 210079556 (conformed to proof) and reasonably available to CSAA on or before February 25, 2021 through routine subpoena duces tecum (Code Civ. Proc. § 1985 / Evid. Code § 1560), Public Records Act request (Gov. Code § 7922.530), Penal Code § 832.7(b) request, or insured-authorization channel;
- The three-anchor delayed-discovery sequence (Jan. 17, 2025 / Feb. 18, 2025 / Apr. 16, 2025);
- The “deny-delay-defend” institutional pattern documented by the underlying record;
- The **Position A vs. Position B cross-case spine** to companion CGC-25-631801: Position A (CSAA's February 25, 2021 written representation that its investigation was “concluded”) and Position B (CSAA's panel-counsel representations in CGC-21-594102 that the same Silent Witnesses were of “unknown provenance”) cannot both be honestly believed by a single principal under Civil Code §§ 2330 and 2338 and Evidence Code § 1222.

SUPPORTING PAPERS

This Motion is based upon:

- This Notice of Motion and Motion;

- The accompanying Memorandum of Points and Authorities;
- The Declaration of Franciscus Dylan Rosario;
- The Request for Judicial Notice;
- The proposed Third Amended Complaint (lodged herewith);
- The Cure Matrix — Defense Objection Map;
- All records and files in this action; and
- Such other evidence and argument as may be presented at the hearing.

RELIEF REQUESTED

Plaintiff respectfully requests that this Court enter an order:

1. Granting Plaintiff leave to file the Third Amended Complaint in the form lodged with this motion;
2. Deeming the Third Amended Complaint filed and served as of the date of the order;
3. Mooting Defendant's pending Motion to Strike, Demurrer, and Anti-SLAPP motions to the operative Second Amended Complaint; and
4. Granting such other relief as the Court deems just and proper.

Dated: _____

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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Dated: April 28, 2026



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